

March 16, 2026
Dept. 9
Probate Tentative Rulings

11.	PP20200225	ESTATE OF ROBERT THARRAT
Letters of Administration		

Decedent Tharrat's estate is named in a federal personal injury lawsuit brought by the representative of the Estate of Joaquin Diaz ("Petitioner"). Decedent's estate was named in the lawsuit as of August 31, 2021, and decedent's estate filed an Answer on January 27, 2025.

Decedent's estate has a Special Administrator who was appointed for the sole purpose of filing a claim on behalf of decedent with the September 11 Victim Compensation Fund.

Petitioner attempted to file a late creditor claim in this probate matter in an unspecified amount, reflecting a potential award of damages in the federal lawsuit. This claim was later withdrawn because the claim was filed too late, the Special Administrator had no authority to pay decedent's debts, and the Petitioner had no legal claim against the personal representative. See, Tentative Ruling, December 1, 2025.

Now Petitioner has filed a Petition to administer decedent's estate. However, there is no proof of publication, Duties/Liabilities statement (DE 147/DE 147s) or proof of service of notice of the hearing on the Petition on file with the Court.

TENTATIVE RULING #11: THIS MATTER IS CONTINUED TO 8:30 A.M. ON MONDAY, MAY 11, 2026, IN DEPARTMENT NINE TO ALLOW PETITIONER TIME TO FILE A DUTIES/LIABILITY STATEMENT, PROOF OF PUBLICATION AND PROOF OF SERVICE WITH THE COURT.